

PUBLIC VERSION

Exhibit 89C

REDACTED

PUBLIC VERSION

LICENSE AGREEMENT

THIS AGREEMENT made effective as of the 5th day of November, 2012, is by and between Ultra-Mek, Inc., having its principal offices at 487 Bombay Road, Denton, North Carolina 27239 (hereinafter referred to as "ULTRA-MEK"), and Leggett & Platt, Incorporated, a corporation incorporated under the laws of the State of Missouri, of the United States of America, having its principal offices at No. 1 Leggett Road, Carthage, Missouri 63843 (hereinafter referred to as "L&P"). ULTRA-MEK and L&P are each referred to herein as a "Party" and are collectively referred to herein as "Parties."

PURPOSE AND BACKGROUND:

ULTRA-MEK is the owner of certain patents relating generally to furniture (hereinafter defined and referred to as "LICENSED PATENTS"); and

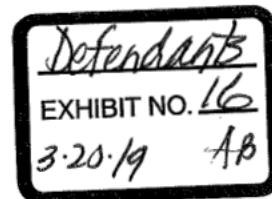
L&P is desirous of securing, and ULTRA-MEK is willing to grant to L&P, an exclusive license to make, have made, use, offer to sell, and/or sell the hereinafter defined LICENSED PRODUCTS under the LICENSED PATENTS all upon the terms and conditions provided in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, L&P and ULTRA-MEK agree as follows:

SECTION 1. DEFINITIONS

As used in this Agreement, the following terms shall be deemed to have the following meanings:

1(a) "LICENSED PATENTS" shall mean U.S. Patent Numbers 7,503,624; 7,669,921; 7,997,644; 8,016,348; and 8,113,574, and any other divisional, continuation,



continuation-in-part, or substitute patent applications based on or claiming priority to any of the LICENSED PATENTS, any patents that shall issue on any such patent applications, any reissues, reexaminations and extensions of the above.

- 1(b) "LICENSED PRODUCT," singular or plural, shall mean:
- (i) any product or process made, used, and/or sold in the United States that includes an invention within the scope of one or more claims in any of the LICENSED PATENTS, or
 - (ii) any product made, sold or used in the United States resulting from or made by, a process or method claimed in any claim in any of the LICENSED PATENTS.
 - (iii) For purposes of clarification and not limitation, products that includes an invention within the scope of one or more claims in any of the LICENSED PATENTS shall include, but not be limited to, (a) L&P products

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

1(d) "RELATED COMPANY," singular or plural, shall mean any parent, subsidiary or Affiliate company of L&P, or any subsidiary or Affiliate of any parent or subsidiary of L&P, including L&P as identified above. Affiliates means an entity directly or indirectly controlling or controlled by or in common control with a Party, where "control" is defined in this context as the ownership of at least fifty percent (50%) or more of the voting stock or other interest entitled to vote on general decisions reserved to stockholders, partners, or other owners of such entity. An entity shall no longer be a RELATED COMPANY when through loss, divestment, dilution or other reduction of ownership, the requisite control no longer exists.

SECTION 2. WARRANTY

2(a) ULTRA-MEK warrants that it is the owner of the entire right, title and interest in and to the LICENSED PATENTS, that ULTRA-MEK has the right to grant the licenses granted in Section 3 hereof, and that ULTRA-MEK believes that the currently issued LICENSED PATENTS are valid and enforceable.

2(b) The responsibility for directing payment of any patent maintenance fees shall be in ULTRA-MEK. ULTRA-MEK warrants that after execution of this Agreement, any fee payable to the United States Patent and Trademark Office for any of the LICENSED PATENT RIGHTS will not be paid based on a claim of small entity status and that ULTRA-MEK will instruct ULTRA-MEK's attorneys to that effect. ULTRA-MEK further warrants that ULTRA-MEK will instruct ULTRA-MEK's attorneys to pay any maintenance fee for the LICENSED PATENTS.

2(c) Except as otherwise expressly stated in this Agreement, ULTRA-MEK makes no warranties or representations regarding the LICENSED PATENTS or otherwise, and ULTRA-MEK disclaims any representations or warranties, express or implied, regarding the same, including any express or implied warranty of merchantability, non-infringement, or fitness for a particular purpose. ULTRA-MEK shall not be liable to L&P for indirect, incidental, consequential, special or exemplary damages, such as, but not limited to, loss of revenue or anticipated profits or lost business in connection with the subject matter of this Agreement.

SECTION 3. LICENSE GRANT

3(a) ULTRA-MEK hereby grants to L&P and L&P hereby accepts an exclusive license, with respect to all others beyond ULTRA-MEK, within the United States and with the

right to grant sublicenses to RELATED COMPANIES, under the LICENSED PATENTS to make, have made, import, offer to sell, use and/or sell the LICENSED PRODUCTS.

3(b) The license granted to L&P in section 3(a) above shall be exclusive except as to ULTRA-MEK and its RELATED COMPANIES. L&P acknowledges that ULTRA-MEK retains the right to make, have made for itself (including for sale by itself), import for itself, offer to sell, use and/or sell products or processes covered by the LICENSED PATENTS, either itself, or through any of its RELATED COMPANIES. The license under this sub-section shall follow any product made, imported, offered for sale, used, and/or sold by or for ULTRA-MEK or its RELATED COMPANIES. Thus, ULTRA-MEK's sales agents, distributors, and retailers shall have the right to sell and offer for sale ULTRA-MEK's products. To the extent necessary to ensure that ULTRA-MEK retains or otherwise has the rights specified in this section 3(b), L&P hereby grants to ULTRA-MEK and its RELATED COMPANIES a royalty-free, non-exclusive license under the LICENSED PATENTS to make, have made, import, offer to sell, use and/or sell products and processes covered by the LICENSED PATENTS.

SECTION 4. ROYALTIES & PAYMENTS

4(a) L&P hereby agrees to pay to ULTRA-MEK a [REDACTED]

[REDACTED] upon execution of this Agreement. To be free from doubt, this

[REDACTED]

[REDACTED]

[REDACTED]

4(b) As consideration for the license herein granted in Paragraph 3, L&P agrees to pay to ULTRA-MEK a [REDACTED] Such royalty

payment shall be mailed to ULTRA-MEK within sixty (60) days after the end of each calendar quarter for the term of this Agreement, along with a quarterly report [REDACTED]

[REDACTED] LICENSED PRODUCTS to provide assurance of its correctness. L&P further agrees to pay to ULTRA-MEK a [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] L&P shall be liable and responsible to ULTRA-MEK for all payment, reporting, and other aspects of this agreement, including, for example, making all payments, regardless of whether [REDACTED] or RELATED COMPANY.

SECTION 5. ROYALTY CALCULATION, REPORTS AND COMMUNICATION

5(a) L&P agrees, and will require any sublicensee RELATED COMPANIES to agree, to keep true and accurate records adequate to establish any royalty payable under this Agreement and to permit an independent auditor (including a certified public accountant selected by ULTRA-MEK and reasonably acceptable to L&P, its acceptance of which will not be unreasonably withheld), to inspect, on a confidential basis and at ULTRA-MEK's expense, said records once annually at reasonable times upon giving a thirty (30) day notice, but only within a period of five (5) years after the royalty period to which such records relate. L&P shall provide to ULTRA-MEK quarterly royalty reports of earned royalty due and payable on [REDACTED] [REDACTED] in the immediately preceding calendar quarter, to be mailed to ULTRA-MEK within sixty (60) days after the end of each calendar quarter, accompanied by payment of all amounts shown to be so due and payable. If an audit establishes that cumulative royalties paid to

ULTRA-MEK between the date of the audit and the date of the next previous audit or this Agreement (whichever is later) were less than the amount actually due, and the difference is greater than 15% of the total amount due, L&P shall pay to ULTRA-MEK the cost of the audit plus the difference between the amount paid and the amount due plus interest from the appropriate due date.

5(b) Earned royalty, as provided in Paragraph 4(b) hereof, shall accrue upon
[REDACTED]
[REDACTED]

5(c) Only a single royalty under Paragraph 4(b) hereof shall be payable to ULTRA-MEK for each specific unit of LICENSED PRODUCT regardless of the number of countries in which manufacture, importation, sale, resale and/or use is made by L&P, any sublicensees, any RELATED COMPANIES and/or any direct or indirect customer thereof.

5(d) Royalty and other payments due to ULTRA-MEK under this Agreement shall normally accrue and be made in United States dollars. However, if the first sale of any unit of LICENSED PRODUCT by L&P, any sublicensee RELATED COMPANY, in any arm's-length transaction to an unrelated party (such as a third-party distributor, retailer or end user), is made in a currency other than United States dollars, then the royalty thereon shall be converted into and paid in United States dollars at the applicable rate of exchange existing on the day of royalty remittance by L&P.

5(e) The Parties agree to meet at least once each calendar year to discuss this Agreement and the relationship between the Parties.

SECTION 6. ENFORCEMENT AND DEFENSE OF LEGAL RIGHTS

[illegible]

6(b)

[REDACTED]

[REDACTED]

[REDACTED]

SECTION 7. PATENT NOTICE MARKING

L&P shall, and shall require each of its authorized sublicensees, if any, to mark all LICENSED PRODUCTS with the number of any applicable patent in accordance with the provisions of 35 USC 287.

SECTION 8. FORCE MAJEURE

Neither Party to this Agreement shall be responsible to the other Party for nonperformance or delay in performance of any terms or conditions of this Agreement due to acts of God, acts of governments, wars, riots, strikes, accidents in transportation, or other causes beyond the reasonable control of the Parties. Failure to pay money shall not be excused under this Section.

SECTION 9. TERM OF AGREEMENT

Unless this Agreement shall be terminated by either Party pursuant to the provisions hereof, this Agreement shall remain in force and effect during the pendency and until the expiration of the last-to-expire of the LICENSED PATENTS.

SECTION 10. TERMINATION

L&P may terminate this Agreement upon written notice to ULTRA-MEK, within ninety (90) days of each calendar year of the Agreement. ULTRA-MEK may terminate this Agreement upon written notice to L&P if L&P breaches any material representation, warranty or agreement in this Agreement and fails to cure such breach within sixty (60) days of receipt of such notice detailing the alleged breach.

SECTION 11. ASSIGNABILITY

This Agreement may not be assigned by either of the Parties without the prior written consent of the other, except that either Party may assign same, with notice to the other, but without their consent, to any bona fide third party purchaser of L&P or ULTRA-MEK or of substantially all of the business to which the LICENSED PATENTS relate.

SECTION 12. NOTICES AND PAYMENTS

All notices provided for herein shall be given in writing and, if delivered directly to the other Party, shall be effective on the date of delivery, or, if delivered by prepaid postage registered or certified mail (or equivalent mail delivery), addressed to the Party to whom the notice is to be given at the respective address first set forth above, or any substitute address of either Party notified in writing to the other Party, then any such postal notice shall be deemed to have been given on the third (3rd) day following such mailing. Any payments to be made under this Agreement shall likewise be directed to the address indicated above or any such substitute address.

SECTION 13. APPLICABLE LAW & DISPUTE RESOLUTION

13(a) The Parties hereto agree that this Agreement shall be considered to have been made in, and construed and interpreted in accordance with the substantive laws of, the [REDACTED] without regard to conflicts of law principles.

13(b) Any dispute, controversy or claim arising out of or relating to this Agreement or the breach thereof ("Dispute") will be handled by a [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
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[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
SECTION 14. MISCELLANEOUS

14(a) Upon the termination of this Agreement and/or any sublicenses granted hereunder, L&P, and sublicensed RELATED COMPANIES of L&P shall have the right to dispose of all LICENSED PRODUCTS then on hand, including work in process, and to meet all pending orders for LICENSED PRODUCTS, but earned royalty which would otherwise be payable pursuant to Paragraph 4(b) of this Agreement had such termination not become effective, shall be paid with respect to all such LICENSED PRODUCTS when sold as though this Agreement had not been terminated.

14(b) Neither termination nor expiration of this Agreement shall terminate L&P's obligation to pay all earned royalty which shall then have accrued up to the date of such expiration or termination. L&P's obligation to report royalties due and submit its books and records for inspection as provided in Paragraph 5(a) hereof shall continue until L&P's royalty obligations shall have been fully determined and discharged by proper payment.

14(c) This Agreement contains all of the agreements and understandings made between the Parties hereto concerning the LICENSED PATENTS and the LICENSED PRODUCTS, and any prior agreements, express or implied, relating to the subject matter hereof are expressly superseded and canceled. No amendment of this Agreement shall be effective unless in writing and signed by the Parties hereto.

14(d) This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

14(e) This Agreement does not constitute and shall not be construed to constitute a partnership or joint venture, and neither Party shall have the right to obligate the other in any way. In addition, neither Party to this Agreement shall be construed to be an agent of the other Party to this Agreement.

14(f) In the event that any condition or provision in any section of this Agreement shall be held invalid or illegal or contrary to public policy by a court of competent jurisdiction, board of arbitration, or government authority, from which there is no appeal, this Agreement shall be construed as though such provision or condition did not appear therein, and the remaining provisions of this Agreement shall continue in full force and effect. The Parties, however, shall make a good faith effort to replace the invalid provision with a valid provision, which most closely reflects the original intent of the Parties.

14(g) Failure to exercise any available rights at any time with respect to any nonperformance or breach shall not constitute a waiver of those rights with regard to that non-performance or breach, or to any subsequent nonperformance or breach. The exercise of

any right or remedy shall not exclude the current or subsequent exercise of any other available right or remedy.

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IN WITNESS WHEREOF, the Parties have executed this Agreement in duplicate
effective on the day and year first above written.

L&P

By: *Randall M. Ford*
Name: RANDALL M. FORD
Title: VP / PRESIDENT HOME FURNITURE

Date November 5, 2012

ULTRA-MEK

By: _____
Name: _____
Title: _____

Date _____

PUBLIC VERSION

IN WITNESS WHEREOF, the Parties have executed this Agreement in duplicate
effective on the day and year first above written.

L&P.

By: Randall M. Ford
Name: Randall M. Ford
Title: VP/President Home Furniture
Date: November 5, 2012

ULTRA-MEK

By: D Steve Hoffman
Name: D STEVE HOFFMAN
Title: CEO
Date: NOVEMBER 8, 2012